

Gokaran vs Bhagwat And Ors on 29 November, 2021

T O HIGH COURT OF CHHATTISGARH, BILASPUR
Order Sheet
SA No. 396 of 2012
Gokaran Versus Bhagwat And Ors.

29.11.2021

Mr. Himanshu Pandey, Counsel for the appellant.

Mr. Sanjeev Kumar Agrawal, Counsel for the State.

Heard.

Admit.

Learned counsel for the appellant would submit that the trial Court has committed illegality in dismissing the suit on the count that the trial Court has recorded its findings that though the defendant No.1, 3 and 4 are illegitimate son, still they are entitled to hold the property and defendant No.2 is not legally wedded wife of deceased still the trial Court has dismissed the suit. Against that order judgment and decree passed by trial Court, an appeal was preferred before the First appellate Court, the same has also been dismissed.

The appeal is admitted on following substantial question of law whether the trial Court is justified in granting the share of property owned by Bahoran by defendant No.2 Sirwantin Bai who is not legally wedded wife by dismissing the suit, ignoring the provisions of Section 16 of Hindu Marriage Act as well as Section 8 of Hindu Succession Act?

Issue notice to respondents by registered mode as well as ordinary mode.

Copy of the order be also annexed with the notice to be issued to respondents.

List this case after 6 weeks.

Sd/-

(Narendra Kumar Vyas) Judge parul